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* This index is intended as a quick reference to the discussion infra. The index is not exhaustive, but only lists those officials whose protection from liability is easily ascertained.

INTRODUCTION

For over a century, the Supreme Court has recognized that some degree of immunity is necessary to protect public employees from personal damages suits that would interfere with the effective functioning of government. Defining that immunity has proved difficult, however. Some applications, such as Speech or Debate and Presidential immunities, are grounded in the Constitution itself and are not subject to serious challenge. Others, while rooted in our common law traditions, are essentially judge-made doctrines that have been altered as courts have been confronted with novel theories of liability. At times, this change has been dramatic. In 1978, for example, the Supreme Court adopted a qualified immunity standard for federal officials that had been applied for several years in suits against state officials, only to reject it four years later after the Court found the standard unworkable.

To a large extent, the uncertainty that surrounds the immunity area is attributable to the courts' own ambivalence toward the concept. By its very nature, immunity runs counter to the judge's natural inclination to resolve a case on its merits as well as the tendency of many courts to permit damages actions in order to effect judicial oversight of the operations of the Executive Branch. Thus, even when favorable Supreme Court immunity pronouncements

have seemed clear, all too often they have been later limited by lower courts reluctant to deny the plaintiff a day in court.

The individual liability case places a dual burden on the government attorney, who not only must be concerned with the programmatic consequences of the action but also with the individual defendant employee. The purpose of this monograph is twofold -- to help attorneys recognize viable immunity claims, which are central to the defense of personal damages actions, and to present those claims effectively. As the above indicates, this is an evolving area of the law and one where standards often vary from circuit to circuit. The discussion of the various immunities protecting federal employees that follows, then, should not be viewed as complete but should serve only as the starting point in preparing an immunity motion.^{1/}

I. JUDICIAL AND LEGISLATIVE IMMUNITIES

The immunities that protect judges and legislators are well established. Although government attorneys are not frequently confronted with suits against these specific officials, their immunities are important because they have

^{1/} Research in the immunity area unfortunately is hampered by the absence of any coherent treatment of immunity in the digests. In an attempt to remedy this problem, pertinent WEST key Numbers are included at the end of each section in Parts I and II in order to indicate where cases discussing particular immunity doctrines likely will be found.

been held to apply to executive officers who perform quasi-judicial functions or functions that are legislative in characters.

A. Judicial Immunity:

GENERAL RULE: Judges receive absolute immunity for their judicial actions as long as they do not act in the clear absence of all jurisdiction. This immunity generally has been extended derivatively to protect court functionaries acting at a judge's direction as well as to other persons who perform functions that are an integral part of the judicial process.

Judges are protected by an absolute immunity that was recognized at English common law. The Supreme Court adopted the immunity early in Bradley v. Fisher, 80 U.S. (13 Wall.) 335 (1871)), explaining that judges must be protected from inhibiting damages suits because they frequently must determine "[c]ontroversies involving not merely great pecuniary interests, but the liberty and character of the parties, and consequently exciting the deepest feelings *** [where] there is great conflict in the evidence and great doubt as to the law which should govern their situation" (id. at 348). This immunity is so firmly established that a clear indication in the legislative record will be required before the Court will presume that Congress intended to abolish the doctrine in enacting general remedial provisions (Pierson v. Ray, 386 U.S. 547, 554-55 (1967)).

The immunity protecting judges is broad. "A judge will not be deprived of immunity because the action he took was in error, was done maliciously, or was in excess of his

authority; rather, he will be subject to liability only when he has acted in the 'clear absence of all jurisdiction'" (Stump v. Sparkman, 435 U.S. 349, 356-57 (1978)). The immunity extends to actions in cases before the court as well as other acts that are judicial in nature, such as ex parte orders (e.g., approving an application for a search warrant, id. at 363 n.12) and orders designed to preserve the integrity of proceedings before the court (such as the removal of an attorney, Randall v. Brigham, 74 U.S. (7 Wall.) 523 (1868)).^{2/}

Judicial immunity does have limitations, however. While a judge will be immune if he acts in excess of jurisdiction, the immunity is lost where the judge acts in the complete absence of subject matter jurisdiction, such as where a statute expressly deprives the court of jurisdiction. See, e.g., Billingsley v. Kyser, 691 F.2d 388, 389 (8th Cir. 1982); O'Neil v. City of Lake Oswego, 642 F.2d 367, 369 (9th Cir. 1981); see also, Gregory v. Thompson, 500 F.2d 59, 64-65 (9th Cir. 1974)(the physical removal of a

^{2/} When a court promulgates disciplinary rules of general application, it acts in a legislative rather than judicial capacity and is protected by legislative immunity (see page 13, infra).

A more difficult question is presented when a judge acts in an administrative capacity regarding court personnel. Compare Lewis v. Blackburn, 734 F.2d 1000, 1008 (4th Cir. 1984)(absolute immunity for judge's improper refusal to reappoint magistrate) with Atcherson v. Siebenmann, 605 F.2d 1058, 1064 (8th Cir. 1979)(qualified immunity for improper discharge of juvenile probation officer).

person from the courtroom is not a judicial act that cloaks the judge with absolute immunity).^{3/} Judicial immunity also does not exempt the judge from testifying when he has information that is material to a criminal or civil proceeding (Dennis v. Sparks, 449 U.S. at 31). Finally, the Supreme Court has held that although judicial immunity would defeat a civil rights damages action under 42 U.S.C. § 1983 (Pierson v. Ray, 386 U.S. 547), the immunity would not bar an equitable claim or an award of attorney's fees (Pulliam v. Allen, 104 S.Ct. 1970 (1984)).

Judicial immunity also may have derivative application. There is general agreement that clerks of a court are absolutely immune when they perform a ministerial function at the

^{3/} The circuits are divided as to whether immunity is lost where the judge acts in the clear absence of personal jurisdiction. Compare Green v. Maraio, 722 F.2d 1013, 1016-18 (2d Cir. 1983) with Rankin v. Howard, 633 F.2d 844, 848-59 (9th Cir. 1980), cert. denied, 451 U.S. 939 (1981). We believe the Second Circuit has adopted the better rule, that a judge only loses his immunity where he has acted in the clear absence of subject matter jurisdiction.

In Rankin, the Ninth Circuit also held that judicial immunity would not protect the judge accused of having a private, prior agreement to decide in one party's favor because the agreement would not be a judicial act (633 F.2d at 847-48). Although the holding has superficial appeal, it cannot be reconciled with Bradley and Stump, which completely bar any inquiry into a judge's hidden reasons for deciding a matter before the court. The Ninth Circuit instead should have sustained the judge's immunity and left the plaintiff to proceed against the alleged co-conspirators. See Dennis v. Sparks, 449 U.S. 24 (1980) (suit against judge who allegedly conspired with others in corruptly issuing an injunction); see also, Dykes v. Hosemann, 743 F.2d 1488, 1494-95 (11th Cir. 1984).

direction of a judge (Williams v. Wood, 612 F.2d 982, 985 (5th Cir. 1980)), although the circuits are divided as to whether clerks are protected by absolute or qualified immunity when performing other functions related to the judicial process (see cases cited at id. at 985 nn. 3-4). The circuits similarly are divided with respect to the immunity of court reporters. Compare Dieu v. Norton, 411 F.2d 761, 763 (7th Cir. 1969) with Green v. Maraio, 722 F.2d at 1018-19. Absolute immunity also has been extended to protect persons who are not employees of the court, such as grand jurors (Ferri v. Ackerman, 444 U.S. 193, 202 (1979)), witnesses (Briscoe v. Lahue, 103 S.Ct. 1108 (1983)), and bar association grievance committee members (Richardson v. Koshiba, 693 F.2d 911, 914 (9th Cir. 1982)), who perform functions that are an integral part of the judicial process. The same reasoning has justified an absolute immunity for certain functions of the prosecutor (discussed at pages 34-36, infra); but the Supreme Court has refused to extend the immunity to public defenders (Tower v. Glover, 104 S.Ct. 2821 (1984)) and court appointed counsel (Ferri v. Ackerman, 444 U.S. 193), on the ground that they perform functions that traditionally have not been accorded any special immunity at common law.